

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED**

2260 N Street, Merced  
627 W. 21<sup>st</sup> Street, Merced  
1159 G Street, Los Banos

Monday, September 14, 2026

**Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:**

**Courtroom 8 – Hon. Stephanie L. Jamieson**

**Courtroom 9 – Commissioner David Foster**

**Courtroom 12 – Hon. Jennifer O. Trimble**

**Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.**

**IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.**

**The tentative rulings for specific calendars follow:**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings  
Hon. Stephanie L. Jamieson  
Courtroom 8

627 W. 21<sup>st</sup> Street, Merced

Monday, September 14, 2026  
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

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| Case No. | Title / Description |
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|            |                                                                             |
|------------|-----------------------------------------------------------------------------|
| 21CV-00190 | Alexis Ruiz Gonzalez vs California Sun Grower Services Company, LLC, et al. |
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Order to Show Cause Re: Dismissal - Notice of Settlement

**CONTINUED pursuant to the joint status report filed August 28, 2026, to December 16, 2026, at 8:15 a.m. in Courtroom 8 to allow further procedural requirements for settlement to be completed.**

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| 22CV-03621 | Armando Diaz vs Sol Rivas, et al. |
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Motions in Limine (Cross-Complaint)

**VACATED. No motions were filed by either party. Court trial for September 21, 2026, at 1:30 p.m. on the cross-complaint is CONFIRMED.**

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| 23CV-02924 | Laurie Rice vs Nissan North America, INC |
|------------|------------------------------------------|

Order to Show Cause Re: Dismissal - Notice of Settlement

**CONTINUED pursuant to the declaration of Kayla Herpers, filed September 4, 2026, to December 16, 2026, at 8:15 a.m. in Courtroom 8 to allow the parties time to execute the remaining terms of the settlement and request dismissal.**

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25CV-06583                      Ashley Silva vs Adan Lopez

Order to Show Cause Re: Dismissal - Notice of Settlement

**Appearance required. Appear to address the status of the unconditional settlement for which notice was filed July 14, 2026, with a settlement date of July 10, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date of unconditional settlement.**

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26CV-03182                      Michelle Rojas, et al. vs The Regents of the University of California, et al.

Demurrer to Plaintiff's Complaint

**Continued to September 28, 2026, at 8:15 a.m. in Courtroom 8.**

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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Short Cause Court Trials  
Hon. Stephanie L. Jamieson  
Courtroom 8

627 W. 21<sup>st</sup> Street, Merced

Monday, September 14, 2026  
1:30 pm

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| Case No. | Title / Description |
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| 26CV-01423 | Maria Vera vs Moises Sanchez, et al. |
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Default Prove-Up Hearing

**Appearance required. Hearing to be held in Courtroom 10 before the Hon. Judge LaPorte. Spanish interpreter has been requested.**

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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Ex Parte Applications  
Commissioner David Foster  
Courtroom 9

627 W. 21<sup>st</sup> Street, Merced

Monday, September 14, 2026  
1:15 p.m.

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| Case No.   | Title / Description                                                                                                                                                                |
|------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 26CV-02047 | [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]<br>Ex Parte Application for Order Setting Aside Judgment and Staying Execution of Judgment<br><b>Appearance required.</b> |
| 26CV-02355 | [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]<br>Ex Parte Application for Order Staying Eviction<br><b>Appearance required.</b>                                         |

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Limited Civil  
Commissioner David Foster  
Courtroom 9

627 W. 21<sup>st</sup> Street, Merced

Monday, September 14, 2026  
1:30 p.m.

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2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
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| 24CV-03246 | Cavalry SPV I, LLC vs. Elias Rios |
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Motion for Order Deeming Admitted Requests for Admission

**The unopposed motion by plaintiff Cavalry SPV I, LLC, for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Elias Rios is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to the requests for admissions. The Court notes that Plaintiff has not requested monetary sanctions.**

**The Court will sign the proposed order submitted with the moving papers.**

Trial Setting Conference

**Appearance required.**

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## Order of Examination (Small Claims) – Nayeli Jimenez Camacho

**Appearance required. The Court notes that the judgment creditor has not filed proof of service of the Order to Produce Statement of Assets and to Appear for Examination.**

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**Continued at the request of Plaintiff from August 31, 2026, for oral argument. The Court notes that on September 4, 2026, Plaintiff filed a late 138-page opposition brief without leave of court. Any written opposition was to be filed and served at least nine court days before the original hearing date of August 31, 2026. (Code Civ. Proc., § 1005, subd. (b).)**

## Motion to Strike

**Defendant Grassland Water District's motion to strike the prayer for punitive damages at page 8, line 21 of the complaint is GRANTED without leave to amend. Punitive damages are not recoverable against Defendant, a government entity. (Gov. Code, § 818.) Defendant is directed to prepare and submit a written order consistent with the Court's ruling for the Court's signature, as required by law and the California Rules of Court.**

## Demurrer to Complaint

**Defendant Grassland Water District's general demurrer to the first cause of action on the ground it does not allege sufficient facts to constitute a cause of action for breach of contract is SUSTAINED. It is undisputed that Plaintiff does not allege in the complaint that he is a party to, or a third-party beneficiary of, the alleged contract between Defendant and the U.S. Department of the Interior (see paragraphs 9, 10, and 22 of the complaint) with the necessary standing to sue Defendant for breach of contract.**

**Defendant's unopposed general demurrer to the second cause of action for "breach of duty" on the ground it does not allege sufficient facts to constitute a cause of action is SUSTAINED without leave to amend. Breach of duty is an element of the tort of negligence and is not an independently recognized cause of action under California law. Further, all tort causes of action against public entities are based on statute. The Government Claims Act abolishes all common law tort liability against government entities. (Gov. Code, § 815; *Leon v. County of Riverside* (2023) 14 Cal.5th 910, 918.)**

**Defendant's general demurrer to the third cause of action for negligence on the ground it does not allege sufficient facts to constitute a cause of action is SUSTAINED without leave to amend. Public entities are not subject to common law tort liability.**

**Defendant's general demurrer to the entire complaint on the ground it does not allege sufficient facts to constitute a cause of action against Plaintiff is SUSTAINED. As stated above, public entities are not subject to common law tort liability and the complaint does not specifically identify the grounds for statutory liability against Defendant.**

Having briefly reviewed Plaintiff's untimely 138-page opposition, the Court is uncertain Plaintiff understands Defendant's arguments and the Court's tentative ruling regarding pleading requirements under California law for stating a cause of action against a government entity. Nonetheless, the Court grants Plaintiff's request for an opportunity to file a first amended complaint. Plaintiff is granted leave to file an amended complaint within thirty (30) days of notice of ruling.

Defendant as the prevailing party is directed to prepare and submit a written order consistent with the Court's ruling for the Court's signature, as required by law and the California Rules of Court.

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26CV-03965                    [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

**Appearance required.**

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26CV-04050                    [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

**Appearance required.**

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26CV-04259                    [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

**Appearance required.**

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26CV-04272                    [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

**Appearance required.**

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26CV-04366                    [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Motion to Quash Service of Summons

**Appearance required.**

Demurrer to Complaint

**Appearance required. An opposition and reply to an opposition may be made orally at the time of the hearing. (Code Civ. Proc., § 1170, subd. (c).)**

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